

		1. Filing and motion fees - \$636.84 6. Attachment expenses - \$1,025 11. Court reporter fees as established by statute - \$3,497.25 13. Models, enlargements, and photocopies of exhibits - \$562.82 14. Fees for electronic filing or service - \$224.67 (ROA 472, Memorandum of Costs.) The costs for Item Nos. 1, 6, 11, 13, and 14 appear on their face to be proper charges. There is no opposition, and Plaintiff fails to show that any of the claimed costs were not reasonable or necessary. The Court GRANTS claimed costs as requested in the amount of \$5,946.58. My Groups to give notice. <i>Moving party to give notice as to all motions.</i>
105	Sullivan vs. Santa Ana Unified School District, 24-01431153	Demurrer to Second Amended Complaint Defendants, Santa Ana Unified School District ("SAUSD") and Mayra Helguera ("Helguera") (collectively, "Defendants"), move for an order sustaining a demurrer to the Second Amended Complaint ("SAC") of Plaintiff, Adrienne Sullivan ("Plaintiff"). Defendants contend that the two causes of action in Plaintiff's SAC are barred as Plaintiff failed to timely exhaust administrative remedies, and that the first cause of action for discrimination based on gender in violation of FEHA fails to state facts sufficient to constitute a cause of action. Failure to Timely Exhaust Administrative Remedies Defendants contend that Plaintiff has not and cannot satisfy the exhaustion of administrative remedies as Plaintiff failed to timely file a FEHA complaint with the Civil Rights Department ("CRD") pursuant to Government Code section 12960(e)(5). Defendants assert that Plaintiff failed to file her FEHA complaint within the three-year statute of limitations, that Plaintiff's own allegations establish that her last day of employment with the District was June 30, 2020, and that as Plaintiff did not file her CRD complaint until October 3, 2023, more than three years after her employment ended, her claims are barred. Defendants assert that Plaintiff may only pursue conduct occurring on or after October 3, 2020, but that the SAC alleges adverse conduct occurring only between June 2019 and Plaintiff's separation date of June 30, 2020 such that all alleged conduct falls outside the applicable three-year statutory period. Defendants also assert that as a matter of law, any alleged misconduct occurring after that June 30, 2020, including the District's post-separation risk-management investigation, cannot constitute an "unlawful employment practice" under FEHA and cannot toll or extend the statute of

	limitations. FEHA's limitations period runs from the date of the alleged employment practice, not from later administrative activity unrelated to the plaintiff's employment. Plaintiff contends that Defendants' argument ignores the continuing violation doctrine, which permits a plaintiff to pursue claims arising from a pattern of related discriminatory acts even if some acts fall outside the limitations period, provided that at least one act occurs within the limitations period, and that CRD complaint lists November 2, 2021 as an adverse action date. Plaintiff contends that at this pleading stage, it is premature to conclude that the administrative complaint failed to exhaust remedies for the earlier harassment and discrimination allegations. "A demurrer can be sustained based on the statute of limitations or other limitations period only if the facts alleged in the complaint, or matters of which judicial notice is taken, disclose 'clearly and affirmatively' that the cause of action is barred. [Citation.]" (<i>City of Industry v. City of Fillmore</i> (2011) 198 Cal.App.4th 191, 207.) Government Code section 12960(e)(5) states, "[a] complaint alleging a violation of Section 51.9 of the Civil Code or any other violation of Article 1 (commencing with Section 12940) of Chapter 6 shall not be filed after the expiration of three years from the date upon which the unlawful practice or refusal to cooperate occurred." (Govt. Code § 12960(e)(5).) "For the purposes of this section, filing a complaint means filing an intake form with the department and the operative date of the verified complaint relates back to the filing of the intake form." "If the administrative complaint must be filed within one year 'after' the unlawful practice—here, a discharge—'occurred,' then for the purpose of that complaint, the administrative cause of action must accrue and the statute of limitations must run from the time of actual termination." (<i>Romano v. Rockwell Internat., Inc.</i> (1996) 14 Cal.4th 479, 493.) The period specified in the statute begins to run when the administrative remedy accrues, which is the occurrence of the unlawful practice. [Citation.] (<i>Holland v. Union Pacific Railroad Co.</i> (2007) 154 Cal.App.4th 940, 945 [applying the then one-year period specified in Government Code section 12960].) "An employee who wants to bring an action under FEHA must exhaust the administrative remedy provided by the statute by filing a complaint with the Civil Rights Department and obtaining from the Department a notice
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	of right to sue. [Citations.] “ ‘The timely filing of an administrative complaint’ before the [Department] ‘is a prerequisite to bringing a civil action for damages.’ ” [Citations.]” (<i>Wawrzenski v. United Airlines, Inc.</i> (2024) 106 Cal.App.5th 663, 694.) “Effective January 1, 2020 the Legislature amended section 12960 to change this deadline to three years,” (<i>Ibid.</i>) “Under the ‘continuing violation’ doctrine, however, ‘an employer is liable for actions that take place outside the limitations period of these actions are sufficiently linked to unlawful conduct that occurred within the limitations period.’ [Citation.] The continuing violation doctrine requires proof that ‘(1) the defendant’s actions inside and outside the limitations period are sufficiently similar in kind; (2) those actions occurred with sufficient frequency; and (3) those actions have not acquired a degree of permanence.’ [Citations.]” (<i>Id.</i> at pp. 694-695.) “ ‘Permanence’ means that an employer’s actions and statements make clear to a reasonable employee that any further informal efforts to end the discrimination will be futile. [Citation.]” (<i>Id.</i> at p. 695.) “Thus, when an employer engages in a continuing course of unlawful conduct under the FEHA by . . . engaging in [] harassment, and this course of conduct does not constitute a constructive discharge, the statute of limitations begins to run . . . either when the course of conduct is brought to an end, as by the employer’s cessation of such conduct or by the employee’s resignation, or when the employee is on notice that further efforts to end the unlawful conduct will be vain. Accordingly, an employer who is confronted with an employee seeking . . . relief from . . . harassment may assert control over its legal relationship with the employee either by accommodating the employee’s requests, or by making clear ot the employee in a definitive manner that it will not be granting any such requests, thereby commencing the running of the statute of limitations.’ [Citation.]” (<i>Hoglund v. Sierra Nevada Memorial-Miners Hospital</i> (2024) 102 Cal.App.5th 56, 71-72.) Whether the employer had made clear that any further efforts to resolve the harassment and discrimination would be futile is based primarily on the employer’s actions and statements, not the employee’s subjective belief. (<i>Id.</i> at p. 72.) With regards to exhaustion of administrative remedies, the SAC alleges: “On or about October 3, 2023, PLAINTIFF filed complaint(s) of discrimination and retaliation with the California Department of Fair Employment and Housing (“DFEH”). The DFEH complaint(s) alleged PLAINTIFF was discriminated based upon gender-based harassment which created a hostile or abusive work environment and retaliation.” (SAC, ¶
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		31.) The DFEH issued a Notice of Right to Sue on that same date. (SAC, ¶ 32.) As to alleged wrongful acts by Defendants, the SAC alleges that on or about June 2019, Plaintiff was hired as a Coordinator of Special Education/Mental Health by SAUSD; that at all times, Plaintiff was under the supervision of Helguera; and that "[t]hroughout Plaintiff's employment, PLAINTIFF encountered from HELGUERA a continuing course of anonymous complaints, threatening statements which were severe or pervasive, creating a hostile or abusive work environment based on PLAINTIFF'S gender." (SAC, ¶¶ 12-13, 15.) It is alleged that in October 2019, Plaintiff reported Helguera's gender harassment and discriminatory behavior to SASSA; that on December 19, 2019, Plaintiff met with SAUSD Administrators to discuss Helguera's actions towards Plaintiff and shared Helguera's gender harassment and discriminatory behavior; that following this December 19, 2019 meeting, Helguera threatened Plaintiff and ostracized Plaintiff; that on February 28, 2020, Helguera called Plaintiff into a meeting and told Plaintiff that they were taking her name to the board as a recommendation for a non-reelect year and that Helguera would recommend that Plaintiff resign; that on March 2, 2020, Plaintiff was brought to Helguera's office where Helguera against stated that Plaintiff should resign as soon as possible; that on March 4, 2020, Plaintiff met with the Director of Human Resources and provided details regarding Plaintiff's concerns about being pressured to resign and the hostile work environment; and that on March 11, 2020, Plaintiff received correspondence from SAUSD confirming that she would not be rehired for the 2020-2021 school year, and informing Plaintiff that her last day of employment was scheduled for June 30, 2020. (SAC, ¶¶ 16-17, 19, 21-24.) The SAC alleges that on May 22, 2020, Plaintiff submitted a formal complaint to SAUSD Human Resources alleging gender harassment and toxic work environment, that on a date unknown in 2020-2021, SAUSD's risk management assigned Steve Blackwood to conduct an investigative interview relating to the allegations against Helguera; that on or about June 2021, Plaintiff was interviewed by Blackwood regarding her allegations related to Helguera; that on October 4, 2021, SAUSD was reminded of outstanding issues related to Plaintiff's SAUSD employment; and that on November 9, 2021, Richard Valero, Alliance of Schools for Cooperative Insurance Program for SAUSD acknowledged the "Claim for Damages" that had been filed with the District citing November 2, 2021 as the date of incident, and "stated that SAUSD would be 'conducting an investigation into the facts and
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		circumstances surrounding the claim.' " (SAC, ¶¶ 26-28, 30.) Here, based on the allegations in the SAC, and assuming their truth, conduct by Helguera constituting gender discrimination, harassment, and retaliation against Plaintiff occurred culminated on June 30, 2020, Plaintiff's last day of employment. Plaintiff's complaint filed on October 3, 2023 with the DFEH for discrimination based on gender harassment would not have been timely filed within three years from the date upon which the unlawful practice occurred, i.e., end of Plaintiff's employment on June 30, 2020. The SAC does not allege facts supporting a continuing violation of discriminatory conduct based on gender or retaliation that is sufficiently similar in kind and that occurred with sufficient frequency within three years prior to October 3, 2023, nor does it appear that Plaintiff could do so as her last day of employment was June 30, 2020. The demurrer based on the failure to exhaust administrative remedies is SUSTAINED, without leave to amend. In light of the Court's ruling, the Court need not address Defendants' argument that the first cause of action fails to state facts sufficient to state a claim. <u>Motion to Strike Portions of Second Amended Complaint</u> Defendants move for an order striking claims for "substantial losses in past and future wages," "bonuses," and "employment benefits." (SAC ¶¶ 42, 55.) Contrary to what is stated in the notice of motion, Defendants do not move to strike punitive damages allegations, or other allegations beyond the scope of Plaintiffs' FEHA Complaint. In light of the Court's ruling on the demurrer as to the failure to exhaust administrative remedies, the motion to strike is MOOT. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Defendants to give notice.</i>
106	Potter vs. Brookdale Irvine, 22-01278030	Defendant, Brookdale Senior Living, Inc., moves for summary judgment, or in the alternative, summary adjudication of the four causes of action asserted in the operative Second Amended Complaint of Plaintiffs, Betty Gregory, in and through her Successor-In-Interest, Kimberly Potter and Kimberly Potter.